

A Legal Analysis of the Jeju 4.3 Incident

I. Introduction

The Jeju April Third Incident (1948 to 1954), in which South Korean military forces and right-wing auxiliaries killed an estimated 14,000 to 30,000 civilians, is one of the most legally significant episodes of state violence in modern Korean history. This essay argues that the incident constitutes grave violations of both domestic constitutional guarantees and emerging international human rights norms, that the South Korean legal system compounded these wrongs by actively prosecuting survivors under politically motivated legislation, and that while the Special Act of 2000 and its subsequent amendments represent a landmark in transitional justice, the framework remains legally incomplete without individual criminal accountability.

II. The Military Tribunals: Due Process Denied

The most direct legal atrocity within the 4.3 Incident was the operation of wartime military tribunals that sentenced thousands of Jeju civilians to death or imprisonment through proceedings that bore no resemblance to lawful adjudication. Following the declaration of martial law in November 1948, military courts processed detainees en masse, in many instances without individual hearings, legal representation, or meaningful opportunity to contest the charges. Confessions were extracted under torture, and the evidentiary record in most cases consisted of nothing more than a name on a list supplied by right-wing youth auxiliaries such as the Northwest Youth Association (서북청년회). The Jeju 4.3 Committee, established under the Special Act of 2000, documented in its 2003 Final Report that a significant number of the convictions imposed by these tribunals were factually baseless and procedurally void from inception. The Committee's findings constitute an official governmental determination that the tribunals violated the right to a fair trial, a right protected under Article 27 of the Constitution of the Republic of Korea and, from 1966 onward, under Articles 9 and 14 of the International Covenant on Civil and Political Rights, to which South Korea acceded in 1990. The legal significance of this determination is substantial: it means that the state itself has acknowledged that thousands of convictions were unlawful, yet those convictions were not formally quashed by a court of law until the passage of the 2021 amendment to the Special Act, which enabled victims or their families to apply for judicial retrial. Even then, uptake has been limited and the process remains burdensome for elderly survivors.

III. The National Security Act and the Criminalization of Memory

Beyond the tribunal period, the National Security Act (국가보안법, 1948) functioned for over five decades as a legal instrument that transformed victims into criminals. Its broad prohibition on activities deemed to benefit anti-state organizations was applied to suppress any public discussion of the 4.3 Incident under successive authoritarian governments, from Syngman Rhee through to the military governments of the 1970s and 1980s. Survivors who gave testimony, journalists who reported on the massacres, and academics who researched the events faced prosecution or forced self-censorship. The novelist Hyun Ki-young, whose 1978 short story *Aunt Suni* (손이 삼촌) brought the massacre to national literary attention,

was arrested under the National Security Act and subjected to interrogation by the Korean Central Intelligence Agency, a case that became emblematic of how the law was weaponized against cultural memory. Legally, this pattern represents what scholars of transitional justice identify as structural impunity, that is the use of formally valid legislation to prevent accountability, suppress evidence, and protect perpetrators. The UN Human Rights Committee, in its 1999 Concluding Observations on South Korea, specifically identified the National Security Act's overbroad provisions as incompatible with the right to freedom of expression and opinion under Article 19 of the ICCPR, a direct international legal rebuke of the very instrument used to silence 4.3 survivors. The Act has yet to be repealed, and its continued existence on the statute books remains a point of legal and political contention.

IV. The Special Act (2000) and the Unfinished Legal Reckoning

The enactment of the Special Act on the Jeju April Third Incident in January 2000 marked a turning point, as for the first time the National Assembly formally acknowledged state responsibility and created a legal mechanism, the Jeju 4.3 Committee, to investigate facts, identify victims, restore honor, and recommend remedial measures. The Committee's 2003 Final Report, running to over 700 pages, constitutes the most comprehensive official legal record of the incident and formed the basis for President Roh Moo-hyun's April 2003 state apology, the first by a sitting Korean president. Under the doctrine of state responsibility as reflected in the International Law Commission's Articles on State Responsibility (2001), this apology carries legal weight as an official acknowledgment of internationally wrongful acts. The 2021 amendment further strengthened the framework by providing direct monetary compensation and enabling judicial retrials for survivors and bereaved families. However, the Special Act framework contains a structural legal gap that no amendment has yet closed, in that it provides no mechanism for criminal prosecution of the perpetrators. Not a single military officer, government official, or paramilitary member has faced criminal charges for the killings. The Jeju District Court, in proceedings related to the 2019 retrial applications filed by survivors' families, rehabilitated victims administratively but declined to rule on individual criminal liability, citing the deaths of most perpetrators and the absence of a prosecutorial mandate in the Special Act. This gap is legally significant because, under the evolving norm reflected in the 4.3 Committee's own report, the killings of unarmed civilians under military orders constituted unlawful homicide under the domestic criminal law in force at the time, meaning prosecution was always legally available, and its absence was a political choice rather than a legal impossibility.

V. Conclusion

The legal history of Jeju 4.3 teaches that state violence and legal failure are not parallel phenomena, as they are often the same event. From the void military tribunals of 1948 to the prosecutorial use of the National Security Act against survivors, law was the mechanism of oppression before it became, tentatively, the mechanism of remedy. The Special Act and the 2021 amendments represent genuine and hard-won progress, but compensation and administrative rehabilitation are not substitutes for criminal accountability. The retrial proceedings at the Jeju District Court have restored individual honor, yet they have not delivered justice for the act of killing. Until South Korean law formally prosecutes or at least formally finds the perpetrators criminally liable in absentia, the legal response to 4.3 will remain a reparation without a verdict. That distinction matters, because law's authority rests not only on what it grants, but on what it is willing to call wrong.

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